

United States District Court

SOUTHERN

DISTRICT OF

NEW YORK

AMILCAR ORTIZ

SUMMONS IN A CIVIL CASE

V.

CASE NUMBER:

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JOSEPH ROSS, Shield No. 19166 and POLICE
OFFICER DOMINIC ROBINSON, Shield No. 17677

05 CV 8657**Judge Pauley**

TO: (Name and address of defendant)

City of New York and New York City Police Dept.- 100 Church Street, NY, NY 10007
New York City Police Department- 1 Police Plaza, NY, NY
PO Joseph Ross and PO Dominic Robinson- 52nd PCT. 3016 Webster Ave, Bronx, NY
10467

YOU ARE HEREBY SUMMONED and required to serve upon PLAINTIFF'S ATTORNEY (name and address)

Hankin, Handwerker & Mazel, PLLC
7 Penn Plaza, Suite 904
New York, New York 10001

an answer to the complaint which is herewith served upon you, within twenty (20) days after service of this
summons upon you, exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for
the relief demanded in the complaint. You must also file your answer with the Clerk of this Court within a reasonable period
of time after service.

J. MICHAEL McMAHON

OCT 12 2005

CLERK

DATE

Jessica Doss
(BY) DEPUTY CLERK

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
AMILCAR ORTIZ,

Plaintiff(s),

Case No.: 05 CV 8657 (WHP)
ECF CASE

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSEPH
ROSS, SHIELD NO. 19166 and POLICE OFFICER
DOMINIC ROBINSON, SHIELD NO. 17677,

JURY TRIAL DEMANDED

Defendants.
-----X

Plaintiff, AMILCAR ORTIZ, by his attorneys, HANKIN, HANDWERKER & MAZEL,
P.L.L.C., alleges the following, upon information and belief, as his Complaint:

PRELIMINARY STATEMENT

1. This cause of action arises out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. §§1981, 1983, 1985, and 1986, and of rights secured by the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York. Plaintiff was deprived of his constitutional and common law rights when defendants Police Officer JOSEPH ROSS and Police Officer DOMINIC ROBINSON conducted an unlawful and improper arrest, imprisonment of plaintiff and utilized unreasonable and excessive force and unlawfully committed an unwarranted and malicious assault and battery on plaintiff on or about February 17, 2004, and malicious prosecution occurring thereafter. Plaintiff seeks declaratory relief pursuant to 28 U.S.C. §2201, compensatory and punitive damages for violation of his civil rights pursuant to 42 U.S.C. §§1981, 1983, 1985, and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988.

JURISDICTION

2. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§1981, 1983, 1985, and 1986. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and 28 U.S.C. §1343 (3). Plaintiff asserts jurisdiction over the City of New York of all claims in this Court under 28 U.S.C. §1367. Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do plaintiff's federal claims.

VENUE

3. Pursuant to 28 U.S.C. §1391(b), venue is proper in the Southern District of New York because a substantial part of the events giving rise to the claim occurred in that District. Venue is proper on all State tort claims in that the occurrence giving rise to the action occurred in Bronx County, State of New York.

4. On or about April 22, 2004, and within 90 days after the claim arose, plaintiff caused a Notice of Claim to be served upon defendant, The City of New York.

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served.

6. The Notice of Claim was in writing, sworn to by the plaintiff and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained.

7. Defendant, THE CITY OF NEW YORK, has failed and refused to pay and/or adjust the claim within the statutory period of time.

8. That defendant, THE CITY OF NEW YORK, has not conducted a hearing pursuant to New York General Municipal Law §50-h.

9. This action has been started within one year and ninety days after the happening of the event upon which the claim is based.

PARTIES

10. Plaintiff, AMILCAR ORTIZ, is a resident of the United States of America residing in the State of New York, County of Bronx.

11. Defendant, THE CITY OF NEW YORK, is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

12. Pursuant to §431 of the New York City Charter, the City of New York has established and maintains the Police Department of the City of New York as a department or agency of the defendant, the City of New York.

13. At all times relevant, defendants The City of New York and the New York City Police Department employed the individual defendants Police Officer JOSEPH ROSS and Police Officer DOMINIC ROBINSON who falsely arrested, utilized unreasonable and excessive force on the plaintiff, unlawfully committed an unwarranted and malicious assault and battery on plaintiff and maliciously prosecuted the plaintiff herein.

14. At all times relevant, defendant, Police Officer JOSEPH ROSS, Shield Number 19166, is and was at all times relevant herein an officer, employee and agent of the New York City Police Department. On the date of the incident, February 17, 2004, he was assigned to the 52nd Precinct.

15. At all times relevant, defendant, Police Officer DOMINIC ROBINSON, Shield Number 17677, is and was at all times relevant herein an officer, employee and agent of the New York City Police Department. On the date of the incident, February 17, 2004, he was assigned to the 52nd Precinct.

16. At all times relevant, the individual defendants were acting under the color of State Law.

17. At all times relevant, the individual defendants were acting pursuant to their authority as employees of defendant the City of New York and the New York City Police Department.

18. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the City of New York.

STATEMENT OF FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

19. That on or about February 17, 2004, plaintiff AMILCAR ORTIZ was lawfully in the premises at 253 East Kingsbridge Road, Apt. 2A in the County of Bronx and State of New York.

20. That on the aforementioned date and time and at the aforementioned location, said plaintiff experienced a medical emergency. As a result, 911 was called. Emergency medical workers, as well as the individual defendants responded to the aforementioned location.

21. That on the aforementioned date and time, said plaintiff was unlawfully detained, arrested and searched by defendants Police Officer JOSEPH ROSS and Police Officer DOMINIC ROBINSON. Said defendants had no legal basis for stopping and detaining plaintiff. The true purpose of stopping the plaintiff was to search his person and to harass plaintiff.

22. During plaintiff's unlawful arrest and without cause, defendants Police Officer JOSEPH ROSS and Police Officer DOMINIC ROBINSON, using unreasonable and excessive force, punched and kicked the plaintiff about plaintiff's head, face and body and threw the plaintiff to the ground and otherwise assaulted and battered causing plaintiff to sustain personal and physical injuries, emotional distress, pain and suffering and mental anguish.

23. Said plaintiff was removed from the above premises by the individual defendant police officers where upon said police officers participated in a thorough search of the person and effects of the plaintiff in public, causing serious emotional injury to the plaintiff. All of the aforementioned searches were conducted without a warrant and without probable cause. No reasonable basis existed for the actions taken against the plaintiff.

24. The aforementioned searches of the plaintiff were unreasonable, intrusive and intended to harass, annoy and harm the plaintiff.

25. Plaintiff at no time prior to or during his unlawful arrest attempted to physically resist the actions of the police officers.

26. The use of force on the plaintiff by defendants Police Officer JOSEPH ROSS and Police Officer DOMINIC ROBINSON was far in excess of their lawful authority as New York City police officer. This assault on plaintiff was unreasonable.

27. Plaintiff was then charged criminally with various crimes that allegedly occurred on February 17, 2004 at approximately 6:55 p.m. at 253 East Kingsbridge Road, County of Bronx, State of New York, including assault in the third degree, reckless endangerment in the second degree and criminal possession of a weapon in the fourth degree, none of which he had committed.

28. Plaintiff was subsequently formally charged and arraigned on an erroneous and false complaint in the Criminal Court, County of Bronx, under Docket Number 2004BX010193. Said complaint falsely stated that the plaintiff did unlawfully and willingly commit the crimes of assault in the third degree, reckless endangerment in the second degree and criminal possession of a weapon in the fourth degree. Plaintiff made numerous subsequent appearances in Court in connection with these criminal proceedings and was forced to retain a lawyer.

29. Plaintiff was arrested, assaulted, battered charged and imprisoned by defendants for an extended period of time even though he had committed no crime and defendants knew, or should have known, that there was no reasonable basis for believing that plaintiff had committed any crime.

30. As a result of defendant police officers' false and unsubstantiated allegations, plaintiff was charged under Docket Number 2004BX010193 in the County of Bronx and State of New York and charged with assault in the third degree, reckless endangerment in the second degree and criminal possession of a weapon in the fourth degree, crimes which he did not commit.

31. Plaintiff sustained personal and physical injuries as a result of the physical assault and battery upon him by defendants. Plaintiff also sustained pain and suffering, emotional distress, mental anguish, embarrassment and physical harm as a result of the assault, battery, and unlawful and unconstitutional incarceration and prosecution of plaintiff which lasted more than one year, predicated upon the acts of defendants.

32. Plaintiff was forced to hire a private lawyer to defend himself from the false charges levied against him and expended money for said representation.

33. Plaintiff suffered great disgrace, embarrassment, loss of self esteem and emotional harm resulting from the aforesaid arrest, assault, battery, imprisonment, arraignment, and prosecution on these false charges.

34. The criminal proceedings instituted and continued against plaintiff were wholly without legal or probable cause, were instituted and continued with malice, and said proceedings were terminated in favor of plaintiff on or about June 13, 2005.

35. In doing the acts and things above complained of, defendants were conspirators engaged in a scheme and conspiracy designed and intended to deny and deprive plaintiff of the rights guaranteed to him under the Constitution and laws of the United States and the State of New York.

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE 4TH AND 14TH
AMENDMENTS TO THE UNITED STATES CONSTITUTION**

36. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 35 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

37. As a result of the afore described actions, the defendants individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff of the rights, privileges and immunities secured by the Constitution and laws of the United States in violation of the 4th and 14th Amendments, actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, and 1986 including, but not limited to, plaintiff's rights to be free and secure in his person, to be free from arrest, imprisonment, search and seizure except on probable cause or pursuant to warrant, to be free from excessive use of force, to be free from assault and battery, to be free from intentional

infliction of great emotional distress, to be free from negligence in the performance of police duties, and due process of law.

38. The afore described acts of defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

39. As a result of the foregoing, plaintiff has suffered damages.

**SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE FORCE UNDER 14TH AMENDMENT TO THE
UNITED STATES CONSTITUTION**

40. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 39 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

41. The amount and type of physical force used upon plaintiff by defendants, individually and/or vicariously, by and through their agents, servants and/or employees, was unnecessary, improper, excessive and not reasonably justified under any circumstances.

42. The amount and type of physical force used upon plaintiff by defendants, individually and/or vicariously, by and through their agents, servants and/or employees demonstrated an intentional, willful, malicious, and reckless disregard for and deliberate indifference to plaintiff's rights and physical well being.

43. As a result of the afore described actions, the defendants individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff, of the rights, privileges and immunities secured by the Constitution and laws of the United States in violation of the 4th and 14th Amendments, actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985 and

1986 including, but not limited to, plaintiff's rights to be free and secure in his person from the use of unreasonable force.

44. The aforementioned use of force caused immediate injury in the form of personal and physical injuries, physical and emotional pain, suffering, bruises, shock, fright, humiliation, embarrassment, and deprivation of plaintiff's constitutional rights.

45. As a result of the foregoing, plaintiff has suffered damages.

**THIRD CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S EQUAL RIGHTS
UNDER THE LAW PURSUANT TO THE 14TH AMENDMENT TO THE UNITED
STATES CONSTITUTION**

46. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 45 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

47. The individual defendants demonstrated race-based animus by subjecting plaintiff to patently offensive and disparaging remarks during the aforementioned assault, battery, attack, arrest, incarceration and prosecution of plaintiff.

48. By reason of the foregoing actions, the individual defendants deprived plaintiff of his equal rights under the law, in violation of the 4th and 14th Amendments, actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986 including, but not limited to, plaintiff's right to be free and secure in his person from the use of unreasonable seizure and the right to the privileges and immunities of other citizens of the United States.

49. The aforementioned conduct and use of race-based animus exhibited to plaintiff caused immediate injury in the form of personal and physical injuries, physical and emotional pain,

suffering, bruises, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights.

50. As a result of the foregoing, plaintiff has suffered damages.

FOURTH CAUSE OF ACTION FOR FAILURE TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

51. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 50 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

52. As a result of the afore described actions, defendants, individually, and/or vicariously, by and through their agents, servants and/or employees failed to intervene to prevent or end the unlawful conduct inflicted upon plaintiff by defendants.

53. As a result of the foregoing, defendants individually, and/or vicariously by and through its agents servants and/or employees displayed a deliberate indifference to plaintiff's rights to the privileges and immunities of the United States, in violation of the 4th and 14th Amendment, actionable under and pursuant to 42 U.S.C. §§ 1981, 1985, and 1986 including, but not limited to, the right to equal protection under the law, the right to be free from unreasonable searches and seizures and excessive use of force by virtue of this failure to intervene.

54. As a result of the foregoing, defendants, individually and/or vicariously by and through their agents servants and/or employees acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being.

55. As a result of the foregoing, plaintiff has suffered damages.

**FIFTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE 4TH AND 14TH
AMENDMENTS TO THE UNITED STATES CONSTITUTION**

56. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 55 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

57. As a result of the aforescribed actions, and the criminal prosecution that was improperly commenced and conducted by virtue of the complaint of defendants, individually, and/or employees, plaintiff, was deprived of the rights, privileges and immunities secured by the constitution and laws of the United States in violation of the 4th and 14th Amendments, actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986 including, but not limited to, plaintiff's rights to be free and secure in his person and to be free from prosecution without just and probable cause.

58. The afore described acts of defendants were intentional willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

59. As a result of the foregoing, plaintiff has suffered damages.

**SIXTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE FORCE, SEARCHES AND SEIZURES UNDER THE 4TH
AND 14TH AMENDMENTS TO THE UNITED STATES CONSTITUTION**

60. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 59 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

61. That the defendants' actions, including the arrest, imprisonment, attack, assault, battery and malicious prosecution resulted from and were taken pursuant to a de facto policy, pattern, practice and/or regular course of conduct of the defendant, the CITY OF NEW YORK, through its police department to protect acts of misconduct perpetrated by and on the part of the police officers by means of unlawful arrest, detention, excessive use of force, malicious prosecution, abuse of process, harassment and intimidation.

62. That the existence of a de facto policy, practice, custom and/or course of conduct has been known to the supervisory policy making employees of the defendant, CITY OF NEW YORK, for a substantial period of time.

63. That despite their knowledge of illegal policies and practices of their individual police officers, the supervisory and policy making employees of the defendant, THE CITY OF NEW YORK, have not taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not disciplined or otherwise properly supervised the individual police officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional and statutory limits and exercise of their authority, have not set up any mechanism to prevent such practices from continuing and have instead sanctioned the policy and practices described previously through their deliberate indifference to the effect of such policy and practices which the constitutional rights of the general public, including residents and visitors of the City of New York and the plaintiff herein. The defendant, THE CITY OF NEW YORK, having sanctioned and caused a violation of the civil rights of plaintiff are liable to the plaintiff for injuries resulting from violations of the First, Fourth, Eighth

and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C., §§ 1981, 1983, 1985, 1986, 1988.

64. As a result of the acts stated above, plaintiff has suffered serious physical injury, deprivation of liberty without probable cause, denial of due process and equal protection of laws, cruel and unusual punishment, invasion of privacy, mental distress, pain and suffering and damages to character and reputation.

65. That solely by reason of these malicious, reckless, negligent and/or intentional acts and omissions of the defendants, individually and/or vicariously by their agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised and disabled, received severe and serious physical, mental and emotional injuries in and about diverse parts of their persons; experienced great pain and suffering; was compelled to and did seek medical aid, treatment and attention, incurred expenses as a result and will necessarily incur similar treatment and expenses in the future; was caused great social embarrassment; and in other ways sustained a loss of diverse sums of money.

66. By reason of the foregoing, the plaintiff has suffered damages.

**SEVENTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE SEARCHES AND SEIZURES UNDER ARTICLE
ONE, §12 OF THE NEW YORK STATE CONSTITUTION**

67. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 66 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

68. As a result of the aforescribed actions, defendants, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff, of the rights, privileges

and immunities secured by the Constitution of the State of New York, including, but not limited to, plaintiff's rights to be free and secure in his person and to be free from arrest, search and seizure except on probable cause or pursuant to warrant.

69. The aforementioned acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

70. As a result of the foregoing, plaintiff has suffered damages.

**EIGHTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE FORCE UNDER ARTICLE ON, §12 OF THE NEW
YORK STATE CONSTITUTION**

71. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 70 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

72. The amount and type of physical force used upon plaintiff by defendants, individually and/or vicariously by and through their agents, servants and/or employees, was unnecessary, improper, excessive and not reasonably justified under any circumstances and deprived plaintiff of his right to be free from excessive and unreasonable force.

73. The amount and type of physical force used upon plaintiff by defendants, individually and/or vicariously, by and through their agents, servants and/or employees, demonstrated an intentional, willful, malicious and reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being.

74. As a result of the aforescribed actions, defendants, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff, of the rights, privileges and immunities secured by the constitution of the State of New York, including, but not limited to,

plaintiff's rights to be free and secure in his person and to be free from the use of excessive and unreasonable force.

75. The aforementioned use of force used upon plaintiff by defendants, individually and/or vicariously by and through their agents, servants and/or employees, deprived plaintiff, of the rights, privileges and immunities secured by the constitution of the State of New York, including, but not limited to, plaintiff's rights to be free and secure in his person and to be free from the use of excessive and unreasonable force.

76. The aforementioned use of force caused immediate injury in the form of personal and physical injuries, pain, suffering, bruises, shock, fright, humiliation, embarrassment and deprivation of constitutional rights.

77. As a result of the foregoing, plaintiff has suffered damages.

NINTH CAUSE OF ACTION FOR ASSAULT

78. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 77 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

79. As a result of the foregoing, defendants, individually and/or vicariously, by and through its agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him.

80. As a result of the foregoing, plaintiff has suffered damages.

TENTH CAUSE OF ACTION FOR BATTERY

81. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 80 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

82. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, recklessly, negligently and/or intentionally battered, physically abused, falsely arrested, handcuffed and imprisoned causing serious injury to plaintiff.

83. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally battered, physically abused, falsely arrested, hand cuffed and imprisoned plaintiff causing serious injury to plaintiff.

84. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto.

85. As a result of the foregoing, plaintiff has suffered damages.

ELEVENTH CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

86. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 85 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

87. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally falsely arrested, hand cuffed and imprisoned causing serious physical and emotional injury to plaintiff.

88. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through its agents, servants and/or employees, without just cause of provocation, maliciously, recklessly, negligently and/or intentionally falsely arrested, hand cuffed and imprisoned plaintiff causing serious physical and emotional injury.

89. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, negligent, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation the part of the plaintiff contributing thereto.

90. As a result of the foregoing, plaintiff has suffered damages.

**TWELFTH CAUSE OF ACTION FOR NEGLIGENT AND INTENTIONAL
INFLICTION OF EMOTION HARM**

91. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 90 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

92. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff.

93. As a result of the foregoing, plaintiff has suffered damages.

THIRTEENTH CAUSE OF ACTION OF NEGLIGENT HIRING AND RETENTION

94. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 93 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

95. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers.

96. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers.

97. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers.

98. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out its official duties and/or responsibilities.

99. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ,

police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

100. That at the time and place aforesaid, the defendants, THE CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally assaulted, battered, physically abused, falsely arrested, hand cuffed, imprisoned and prosecuted plaintiff causing serious personal injury to plaintiff.

101. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department.

102. Upon information and belief, defendant City of New York, through the New York City Police Department, owed a duty of care to plaintiff to prevent the use of excessive and unreasonable force against him.

103. Upon information and belief, defendant City of New York, through the New York City Police Department, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to the plaintiff or to those in a like situation would probably result from this conduct.

104. Upon information and belief, defendant City of New York, through the New York City Police Department, knew or should have known through the exercise of reasonable diligence that the Officer defendants had a propensity to commit the misconduct that caused plaintiff's injuries.

105. As a result of the foregoing, plaintiff has suffered damages.

FOURTEENTH CAUSE OF ACTION FOR NEGLIGENCE

106. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 105 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

107. Plaintiff was owed a duty of care and defendants breached that duty of care through its agents, servants and employees by acting with negligence by assaulting and battering the plaintiff and plaintiff sustained harm proximately caused by defendant's negligence.

108. Defendants City of New York and the New York City Police Department, as employers of the defendants are responsible for their wrongdoing under the doctrine of respondear superior.

FIFTEENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

109. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 108 inclusive of the complaint with the same force and effect as if fully set forth at length herein.

110. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees.

111. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, individually and/or vicariously by and through their agents, servants, and/or

employees which reflect utter indifference to the safety and well being of others specifically the safety and well being of plaintiff.

112. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees which reflect conscious disregard for the safety and well being of others and specifically the safety and well being of plaintiff.

113. That the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff.

114. As a result of the foregoing, plaintiff has suffered damages.

JURY DEMAND

115. Plaintiff hereby demands a trial by jury of all issues properly triable thereby.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth Amendment of the United States Constitution was violated;

2. As to the second cause of action, a declaration that plaintiff's right to be free from unreasonable and excessive force under the Fourth Amendment of the United States Constitution was violated;

3. As to the third cause of action, a declaration that plaintiff's right to equal protection under the law as provided by the Fourth and Fourteenth Amendments of the United States Constitution relating to the race-based animus exhibited by defendants during the occurrence complained of was violated;

4. As to the fourth cause of action, a declaration that plaintiff's rights to free from unreasonable searches and seizures and excessive force under the Fourth Amendment of the United States Constitution, relating to defendants' failure to intervene, were violated;

5. As to the fifth cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth Amendment of the United States Constitution relating to plaintiff's right to be free from prosecution without just and probable cause, was violated;

6. As to the sixth cause of action, a declaration that plaintiffs' rights to free from unreasonable searches and seizures and excessive force under the Fourth Amendment of the United States Constitution, relating to defendants' policies and practices of sanctioning said illegal and unconstitutional conduct by its agents, servants and/or employees, were violated;

7. As to the seventh cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the New York State Constitution was violated;

8. As to the eighth cause of action, a declaration that plaintiffs' right to be free from unreasonable and excessive force under the Fourth Amendment of the New York State Constitution was violated;

(B) As to the first through fourteenth causes of action, compensatory damages in an amount to be fixed at trial but not less than five million dollars, together with interests and costs;

(C) As to the first through fifteenth causes of action, punitive damages in an amount to be fixed at a trial but not less than five million dollars, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through fifteenth causes of action, an award to plaintiff of the costs and disbursements herein;

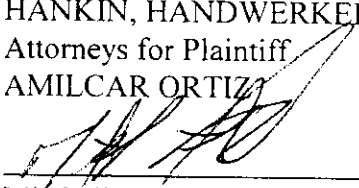
(E) As to the first through sixth causes of action, an award of attorney's fees as provided under 42. U.S.C. Section 1988; and

(F) Such other, further, and different relief as this Court may deem just, proper and equitable.

Dated: October 5, 2005
New York, New York

Yours etc.,
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